

Federal acknowledges that it possesses an expert report regarding the valuation of Plaintiffs’ wine collection prepared by a wine expert, Thatcher Baker-Briggs, served in February 2025, after the Glass Fire. However, Federal argues that the 2025 report is insufficient because Plaintiffs sold the collection in spring 2026. Moreover, Federal emphasizes that the report does not include Plaintiffs’ representations regarding the condition of their property, which is specifically what it seeks.

Plaintiffs argue that the sale of the wine collection is not the subject of any claim in this litigation. (PSSS, 12:22-24.) With respect to Federal’s need for Plaintiffs’ state of mind or representations regarding the post-Glass Fire / pre-Crystal Fire condition of the property, Plaintiffs argue that the theory is entirely speculative and far too attenuated to establish relevance. Specifically, Defendant’s speculation about what Plaintiffs may have represented to unidentified third parties concerning the condition of their wine—which was not stored in the Main Dwelling, and was not at the property for the Crystal Fire (and therefore no under/over-insurance claim exists as to it)—has no bearing on the Property’s actual condition before the Crystal Fire.

As a starting point, the Court believes there is only a minimal showing of good cause for discovery regarding the value of Plaintiffs’ wine collection. The extent of the relevance is that the wine value provides *some level* of insight into the effects of the Glass Fire on Plaintiffs’ property, based on the claims asserted by Plaintiffs about Federal failing to properly value and insure their property after the Glass Fire. However, the relevance in the value of the *wine* is attenuated because that specific portion of the property is not directly subject to Plaintiffs’ claim for over- or under-insurance.

The Court recognizes that the value of Plaintiffs’ wine collection is not the subject of the current discovery dispute. Indeed, Federal already possesses an objective valuation of the wine collection—the 2025 report. The Court provides its reasoning as to the minimal good cause for the objective value of the wine collection to support its conclusion that there is no good cause for the discovery Federal seeks now—that is, *Plaintiffs’ representations* of the wine collection value, which is a further step away from the already-attenuated value of the wine. The only relevance of Plaintiffs’ representations that Federal has articulated is Federal’s entitlement to prior party admissions contradicting their current position. However, Federal fails to cite any authority supporting such entitlement in discovery, nor does Federal explain how any such contradicting admissions undermine Plaintiffs’ claim of over- or under-insuring the property *where an objective valuation already exists*.

Based on the foregoing, the motion as to RFP No. 47 is DENIED.

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Jose Antonio Ceballos Cruz v. Cakebread Cellars

25CV002628

DEFENDANT CAKEBREAD CELLARS’ MOTION FOR MONETARY SANCTIONS,
JOINTLY AND SEVERALLY AGAISNT PLAINTIFF AND HIS COUNSEL OF RECORD
AND TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, COMPLIANCE WITH
THIS COURT’S DISCOVERY ORDER

TENTATIVE RULING: The motion is GRANTED IN PART. Plaintiff's counsel of record Christopher L. Burrows is ordered to remit, as monetary sanctions, payment in the amount of \$3,080 to Defendant Cakebread Cellars (Cakebread), care of its counsel of record, no later than 30 days after entry of the instant order. Cakebread's request for terminating sanctions is DENIED.

On February 6, 2026, Cakebread propounded on Plaintiff Jose Antonio Ceballos Cruz Requests for Production of Documents (Set One), Form Interrogatories (Set One) – General, Form Interrogatories (Set One) - Employment, and Requests for Admissions (Set One) (collectively the Subject Discovery). Plaintiff's responses to the Subject Discovery were due on or before March 9, 2026. As of April 24, 2026, Cakebread had received no response to the Subject Discovery and had not requested any extension of the deadline for responding, and was therefore forced to move for an order compelling Plaintiff to honor his obligations to respond to the Subject Discovery.

By Minute Order of May 21, 2026, the Court granted, in part, the motion to compel, and ordered Plaintiff to serve, no later than June 4, 2026, code-compliant responses to the Requests for Production of Documents, Set One, Form Interrogatories – General, Set One, and Form Interrogatories – Employment, Set One. The Court denied the motion as to the Requests for Admissions. The Court then awarded Cakebread monetary sanctions in the amount of \$1,300.

Defendant Cakebread Cellars now moves, pursuant to California Code of Civil Procedure sections 2023.010, subdivision (g), 2023.030, subdivisions (a) and (d)(1), 2023.030, subdivision (d)(3), 2023.040, 2023.050, subdivision (a) and 2031.230, subdivision (a): (1) for an award of monetary sanctions against Plaintiff and his counsel of record, jointly and severally, in the amount of \$3,250 for reasonable expenses and attorney's fees incurred in connection with this proceeding; and (2) for an order of terminating sanctions either striking Plaintiff's Complaint or dismissing the action. Defendant further moves for an additional mandatory \$1,000 sanction in conjunction with the monetary sanctions. In the alternative, Defendant moves for an order compelling compliance of document production and interrogatory responses in accordance with this Court's May 21, 2026, Order.

Plaintiff concedes, through the late-filed Opposition, that although he has made efforts at responding to the Subject Discovery, as of the filing of the instant motion on July 27, 2026, he has not fully complied with the Court's May 21, 2026, Order. (See, *e.g.*, Opposition at 2:19-21, 3:21-26.)

Disobeying a court order to provide discovery is a clear misuse of the discovery process. (Code Civ. Proc. § 2023.010.) To the extent authorized by the statute or statutes governing the particular form of discovery, the court may impose sanctions upon any party misusing the discovery process, including terminating sanctions consisting of an order striking the party's pleading. (Code Civ. Proc. § 2023.030, subd. (c).) If a party fails to obey an order compelling further response to interrogatories, "the court may make those orders that are just, including the imposition of . . . a terminating sanction . . ." (Code Civ. Proc. § 2023.030, subd. (d).) In lieu of, or in addition to, that sanction, the court may impose a monetary sanction...." (*Ibid.*)

“The sanctions the court may impose are such as are suitable and necessary to enable the party seeking discovery to obtain the objects of the discovery he seeks, but the court may not impose sanctions which are designed not to accomplish the objects of discovery but to impose punishment.” (*Laguna Auto Body v. Super. Ct.* (1991) 231 Cal.App.3d 481, 488, quoting *Motown Records Corp. v. Super. Ct.* (1984) 155 Cal.App.3d 482, 489.) The sanctions imposed must be tailored to “fit the crime.” (*Reedy v. Bussell* (2007) 148 Cal.App.4th 1272, 1293.) “The penalty should be appropriate to the dereliction and, should not exceed that which is required to protect the interests of the party entitled to but denied discovery.” (*Deyo v. Kilbourne* (1978) 84 Cal.App.3d 771, 793.)

The Court shares Cakebread’s frustration with Plaintiff’s lackadaisical approach to discovery. “It is a central precept to the Civil Discovery Act of 1986 (§ 2016 et seq.) . . . that civil discovery be essentially self-executing. [Citation.]’ [Citation.] A self-executing discovery system is ‘one that operates without judicial involvement.’ [Citation.] Conduct frustrates the goal of a self-executing discovery system when it requires the trial court to become involved in discovery because a dispute leads a party to move for an order compelling a response. [Citation.]” (*Clement v. Alegre* (2009) 177 Cal.App.4th 1277, 1291-1292.) Failing to comply with a Court order on such motion places a two-fold burden on the Court’s impacted judicial resources.

Plaintiff offers no explanation for his ongoing failure to honor his discovery obligations and his failure to abide by the Court’s orders.

However, because Plaintiff continues to make efforts at satisfying his discovery obligations, the Court finds the imposition of terminating sanctions would be excessive to the dereliction.

The Court does, however, find good cause for granting the requested monetary sanctions. The Court finds that counsel’s rate of \$260 per hour is consistent with rates typically charged in the community for comparable work. (See Declaration of Christina R. King at ¶ 27.) The Court also finds that eight hours is a reasonable amount of time for researching and drafting the instant motion. (See *ibid.*) However, the Court does not award monetary sanctions for anticipated fees.

As set forth in the Court’s May 21, 2026, Minute Order, the Court finds that neither Plaintiff nor his attorney of record “respond[ed] in good faith to . . . an inspection demand made pursuant to Section 2031.010.” (§ 2023.050, subd. (a)(1).) As such, “in addition to any other sanctions imposed . . . [the Court] shall impose a one-thousand-dollar (\$1,000) sanction” on Plaintiff and/or his counsel of record. (See *ibid.*)

Through his Opposition, Plaintiff states that “any award should be . . . imposed against counsel rather than Plaintiff, and made payable within at least 30 days.” (Opposition at 7:20-23.) As the Opposition was drafted and submitted by counsel, the Court agrees to these modifications of the requested monetary sanctions.

Based on the foregoing, Cakebread's request for an award of monetary sanctions is GRANTED IN PART; Christopher L. Burrows, as counsel of record for Plaintiff, is ordered to remit to Cakebread no later than 30 days after entry of the instant order, monetary sanctions in the amount of $(\$260/\text{hr.} \times 8\text{hrs.}) + \$1,000 = \$3,080$.

Finally, while both parties discuss, through their respective briefs, ongoing difficulty in scheduling Plaintiff's deposition, neither the April 24, 2026, Motion to Compel, nor the Notice of Motion of the instant motion formally requests the Court's intervention in that dispute. As such, issues relating to the scheduling of that deposition are not formally before the Court on the instant Motion.

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Wells Fargo Bank, N.A. v. Isabella A Bottarini

26CV000621

MOTION FOR AN ORDER DEEMING THE TRUTH OF THE MATTERS SPECIFIED IN PLAINTIFF'S REQUEST FOR ADMISSIONS AS ADMITTED

TENTATIVE RULING: The motion is GRANTED.

Plaintiff, Wells Fargo Bank, N.A. moves, pursuant to Code of Civil Procedure sections 2033.010, 2033.020, 2033.250, 2033.280, and 2033.420, for an order deeming admitted the truth of matters specified in the Request for Admissions propounded on Defendant, Isabella A Bottarini.

A. FACTUAL FINDINGS

Based on the evidence submitted in support of the motion, the Court finds as follows.

1. On May 26, 2026, Plaintiff propounded on Plaintiff Ms. Bottarini Requests for Admissions - Set One (Requests). (See Declaration of Edgar B. Lopez at ¶ 2-3, Exhs. 1.) (Lopez Decl.).)
2. The Requests were served on Ms. Bottarini by mail at her address of record in the action. (See *id.* at Exh. 1.)
3. Ms. Bottarini's responses to the Requests were due on or before June 30, 2026. (See Cal. Code Civ. Proc., § 2033.250.)
4. As of the filing of the present motion, Ms. Bottarini had not responded in any manner to the Requests and had not requested any extension of the deadline for responding. (See Lopez Decl. at ¶ 5.)

Plaintiff appears to concede the foregoing by failing to file anything in opposition to the motion.